

Amendment No. 1 to HB2028

Vaughan
Signature of Sponsor

AMEND Senate Bill No. 2262

House Bill No. 2028*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 47, Chapter 18, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Blacklist" means to:

(A) Reduce the visibility or accessibility of a small business's website on an online search engine;

(B) Remove a small business's website or the search result for the small business's website from an online search engine; or

(C) Delete or otherwise remove from the online search engine twenty-five percent (25%) or more of the reviews of a small business;

(2) "Online search engine" means an internet website or application whose primary function is to provide a user a method, whether by query search or other means, to search the internet, including for websites, webpages, or other information, but does not include any other business entity, social media platform, review website, or other platform; and

(3) "Small business" means a business entity, including the business entity's affiliates, that employs fifty (50) or fewer full-time employees.

(b) A small business that believes an online search engine has blacklisted the small business may contact the online search engine and request a written or electronic response concerning the action.

(c) No later than five (5) business days after receiving a request under subsection (b), an online search engine must provide a written or electronic response to the small business that includes:

(1) An explanation of the action and the justification for the action; or

(2)

(A) The process, steps, and requirements necessary for the small business to appeal the action or be restored or re-indexed; and

(B) The contact information for a representative of the online search engine.

(d)

(1) A small business affected by an online search engine's failure to comply with subsection (c) may bring a civil action in a court of competent jurisdiction.

(2) If a court finds that the online search engine violated subsection (c), then the court may award:

(A) Actual damages;

(B) Punitive damages; and

(C) Reasonable court costs and attorneys' fees.

(3) In addition to the remedies authorized by subdivision (d)(2), if a court finds that an online search engine violated subsection (c), then the court may enjoin the online search engine from continuing to violate subsection (c).

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to conduct occurring on or after that date.